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Bill prepared to protect privacy

(From Our Own Reporter)

WELLINGTON, June 18.

A bill designed to protect the privacy of citizens against many invasions imposed in recent years was considered this week by the New Zealand section of the International Commission of Jurists.

Prepared by Dr D. E. Paterson, of Otago University, on behalf of the New Zealand section, the bill was referred to by the section chairman (Dr R. G. McElroy) as the product of three years work on the subject.

"In New Zealand, as in England, there is no common law remedy for invasion of privacy as such, and certainly nothing which is adequate to meet the activities of a society which is developing more and more sophisticated techniques for intrusion", Dr McElroy said. "The mischief is substantial and growing."

Since the study began, three draft bills have been examined and reviewed. These, and further information based on developments here and in the United Kingdom, have led to the production of another bill, the aim of which is to protect privacy by the creation of a new statutory tort of "infringement of privacy."

The proposals and the draft bill do not create a right of privacy in itself, but define with as much precision as possible the circumstances which should be regarded as interference with privacy.

There are nine clauses, the first of which defines interference with privacy, and the

fifth of which lays down the penalty as imprisonment up to six months or a fine not exceeding \$2000. The bill specifically forbids a member of the police to use a listening device unless he has first obtained the permission of a judge of the Supreme Court.

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